

***Jeremy Otto, et al. v. Azteca Builders, Inc., et al.*, 24CV-0348**

Hearing: Motion for Leave to File Amended Complaint

Date: June 24, 2026

Jeremy Otto and Catherine Riedstra (Plaintiffs) filed this action on May 28, 2024, against Azteca Builders, Inc. and Jake Sanchez. A year later, Plaintiffs filed an amendment naming Stephen Henderson as Doe 1. Currently on calendar is Plaintiffs' motion for leave to file amended complaint. The motion is granted.

Plaintiffs move pursuant to Code of Civil Procedure section 473, subdivision (a)(1) for leave to file a Second Amended Complaint¹, attached as Exhibit A to Plaintiffs' memorandum of points and authorities. No opposition has been filed.

I. LEGAL STANDARD

The Court may allow the amendment of any pleading at any time in the furtherance of justice, and upon such terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) The Court's discretion is to be exercised liberally to permit the amendment of pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) "Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial ... this policy should be applied only '[w]here no prejudice is shown to the adverse party....' [Citation]." (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.)

If the motion is timely and does not prejudice the opposing party, it is error to refuse permission to amend. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530; See *Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596.)

Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend; it is preferable to allow the parties to test the legal sufficiency by demurrer or other appropriate motion. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; See also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:644.)

II. DISCUSSION

As a preliminary matter, the Court, on its own motion, strikes Plaintiffs' June 16, 2026, brief as an improper attempt to augment the record without leave of court. (Code Civ. Proc., § 437, subd. (a).)

¹ Although Plaintiffs seek leave to file a Second Amended Complaint, because no First Amended Complaint has been filed, the proposed pleading would be the First Amended Complaint.

Plaintiffs seek to amend the complaint “to add A Class Construction, LLC, Azteca Construction, and Azteca Builders as named Defendants and amendments related to their actions as they pertain to the construction project. The proposed Second Amended Complaint reflects newly discovered facts regarding said business entities and their actions.” (Mem. P. & As., p. 2, ll. 22-25.)

Based on information discovered since filing the complaint, A Class Construction, LLC, Azteca Construction, and Azteca Builders are proper defendants. (Knight Dec., ¶ 3 [sic].)² The amended complaint demonstrates successor entity and/or alter ego liability regarding the other defendants. (*Ibid.*) “The proposed amendment is necessary to ensure that all potentially responsible parties are included in this action and to allow the case to be decided on its merits.” (*Id.*, ¶ 8.) Defendants will not be prejudiced by the amendment because the case remains in its early stages, discovery is ongoing, and trial has not yet been set. (*Id.*, ¶ 9.)

The motion appears to have been properly served, is timely, and no trial date has been set. Moreover, Defendant Azteca Builders, Inc.³ has not asserted it would be prejudiced if the Court permitted amendment. Therefore, based on the liberal policy for allowing amendments and the lack of prejudice to Defendants, the Court grants Plaintiffs leave to file a First Amended Complaint. Plaintiff will file and serve the proposed First Amended Complaint (attached as Exhibit A to Plaintiffs’ memorandum of points and authorities) by July 6, 2026.

ORDER

The unopposed motion is granted. Plaintiffs will prepare the order and serve notice. Plaintiffs shall file their First Amended Complaint on or before July 6, 2026.

² Erroneously numbered as paragraph 3. The applicable paragraph 3 is found at p. 2, ll. 21-24.

³ Defendants Jake Sanchez and Stephen Henderson have not been served with process.